THE CARDAMOM ACT, 1965

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THE CARDAMOM ACT, 1965

ACT NO. 42 OF 1965

[9*th December*, 1965.]

An Act to provide for the development under the control of the Union of the cardamom industry.

BE it enacted by Parliament in the Sixteenth Year of the Republic of India as follows:—

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.—(*1*) This Act may be called the Cardamom Act, 1965.

(*2*) It extends to the whole of India:

Provided that it shall not apply to the State of Jammu and Kashmir* except to the extent to which the provisions of this Act relate to the control of export of cardamom from India and import thereof into India.

(*3*) It shall come into force on such date[1] as the Central Government may, by notification in the Official Gazette, appoint:

Provided that different dates may be appointed for different provisions of this Act.

2. Declaration as to expediency of control by the Union.—It is hereby declared that it is expedient in the public interest that the Union should take under its control the cardamom industry.

3. [*Definitions*.] *Rep. by the Repealing and Amending Act* (10 *of* 1986), *s.* 42 (*w.e.f.* 26-2-1987).

[C*HAPTER* II.—*THE CARDAMOM BOARD*] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

4. [*Establishment and constitution of the Board*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

5. [*Acts or proceedings of Board or its Committees not to be in validated*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

6. [*Salary and allowances of Chairman*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

7. [*Executive officers of the Board and other staff*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

8. [*Committees of the Board*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

9. [*Functions of the Board*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

10. [*Dissolution of the Board*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

[*CHAPTER* III.—*REGISTRATION OF OWNERS OF CARDOMOM ESTATES*] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

11. [*Registration of owners of cardamom estates*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

12. [*Power of State Government to make rules*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

13. [*Returns to be made by registered owners*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

[*CHAPTER* IV.—*FINANCE, ACCOUNTS AND AUDIT*] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

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1. 5th April, 1966, *vide* notification No. G.S.R. 543, dated the 5th April, 1966, *see* Gazette of India, Extraordinary, Part II, sec. 3(*i*) except Chapter III.
11th April, 1966, *vide* notification No. G.S.R. 380, dated 5th March, 1966, *see* Gazette of India, Extraordinary, Part II, sec. 3(*i*) in respect of ss. 14 and 15.
12th July, 1966, *vide* notification No. S.O. 2166(E), dated 12th July, 1966, *see* Gazette of India, Extraordinary, Part II, sec. 3(*ii*) in respect of Chapter III.

*. *Vide* notification No. S.O. 3912(E), dated 30th October, 2019, this Act is made applicable to the Union territory of Jammu and Kashmir and Union territory of Ladakh.

14. [*Imposition of a cess on cardamom exported*.] *Rep. by the Repealing and Amending Act* (10 *of* 1986), *s.* 42 (*w.e.f.* 26-2-1987).

15. [*Payment of proceeds of cess to the Board*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

16. [*Grants and loans by the Central Government*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

17. [*Constitution of the Fund*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

18. [*Borrowing powers of the Board*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

19. [*Accounts and audit*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

[C*HAPTER* V.—CONTROL BY CENTRAL GOVERNMENT] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

20. [*Power to control price and distribution of cardamom*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

21. [*Power to prohibit or control imports and exports of cardamom*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

22. [*Directions by Government*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

[*CHAPTER* VI.—MISCELLANEOUS] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

23. [*Penalty for making false returns*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

24. [*Penalty for obstructing an officer or member of the Board in the discharge of his duties and for failure to produce books and records*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

25. [*Penalty for contravention of order relating to control of price, etc*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

26. [*Other penalties*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

27. [*Offences by companies*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

28. [*Jurisdiction of court*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

29. [*Previous sanction of Central Government*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

30. [*Protection of action taken in good faith*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

31. [*Power to delegate*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

32. [*Suspension of operation of Act*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

33. [*Power of Central Government to make rules*.] *Rep. by s.* 42, ibid. (*w.e.f.* 26-2-1987).

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